

Court No. - 21

Case :- WRIT - C No. - 11545 of 2023

Petitioner :- Ranjeet Kumar Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gyanendra Prakash Srivastava

Counsel for Respondent :- C.S.C.,Nagendra Krishna

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri N.K. Tiwari, counsel for the respondent Electricity Department prays for and is granted time to obtain instructions.

List as fresh on 17.04.2023 showing name of Sri N.K. Tiwari as counsel for respondent Electricity Department.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned demand notice.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.4.2023

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Counsel for Petitioner :- Gyanendra Prakash Srivastava

Counsel for Respondent :- C.S.C.,Nagendra Krishna,Narendra Kumar
Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner is aggrieved by the recovery notice dated 1.7.2022 issued by respondent no. 2 for recovery of electricity dues to the tune of Rs. 2,16,288/- from the petitioner.

Indisputably, permanent disconnection of the electricity supply was carried out on 29.10.2021. The meter removed from the premises of the petitioner was sent for testing after due intimation to him. Based on the test report, the impugned demand has been raised.

Learned counsel for the respondent-Electricity Department submits that the petitioner was issued a notice on 2.11.2021 to remain present on 15.11.2021 at the time of testing of the old meter, but he did not appear and therefore, testing was carried out in his absence and the impugned demand is based on the test report.

Learned counsel for the respondent-Electricity Department further submits that the petitioner has remedy of raising grievance, if any, before the Consumer Grievance Redressal Forum in terms of Clause 7.10 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner states that the petitioner will approach the Consumer Grievance Redressal Forum and prays for withdrawal of the petition.

Accordingly, without expressing any opinion on merits, the petition is disposed of as withdrawn, with liberty to the petitioner to avail such other remedy as may be advised.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.4.2023

Jaideep/-